SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER

PAGE 1 OF 30

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			FA480026Q00310001	01 May 2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (no collect calls)	8. OFFER DUE DATE/ LOCAL TIME
	Antonio Palmer	7577644766	11 May 2026 12:00 PM

9. ISSUED BY CODE: FA4800

FA4800 633 CONS LGCP
14 BURRELL ST BLDG 67, CP 757 225-1669
LANGLEY AFB, VA 23665
UNITED STATES
Antonio Palmer, Email: antonio.palmer@us.af.mil Telephone: 7577644766
Vanity Wright, Email: vanity.wright@us.af.mil Telephone: 7577642313

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR:

☒ SMALL BUSINESS
☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
☐ HUBZONE SMALL BUSINESS
☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 812199

SIZE STANDARD: USD 9,000,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE

12. DISCOUNT TERMS

☐ 13a.THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM-DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION
☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO CODE:

See Schedule

16. ADMINISTERED BY CODE:

17a. CONTRACTOR/ OFFERER CODE FACILITY CODE:

TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY CODE:

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA
See Section G - Contract Administration Data

26. TOTAL AWARD AMOUNT (For Government Use Only)

☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ___ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE ___ OFFER DATED ___. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (Type or print)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)	31c. DATE SIGNED

Solicitation/Contract Form

NAF Langley Sports and Fitness Center Massage Therapy

NAF Langley Sports and Fitness Center Massage Therapy - Concessionaire Services
Product Service Code: R401

Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies / Services	Quantity	Unit	Unit Price	Amount
0001	Langley Sports and Fitness Center Massage Therapy Product Service Code: R401 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1001	Langley Sports and Fitness Center Massage Therapy Product Service Code: R401 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2001	Langley Sports and Fitness Center Massage Therapy Product Service Code: R401 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3001	Langley Sports and Fitness Center Massage Therapy Product Service Code: R401 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4001	Langley Sports and Fitness Center Massage Therapy Product Service Code: R401 Pricing Arrangement: Firm Fixed Price	12	Months		

Description/Specifications/Statement of Work

Requirements

NAF Langley Sports and Fitness Center Massage Therapy - Concessionaire Services

Packaging and Marking

Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: F2Q105 CountryCode: USA

	1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES

Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 01 Jun 2026 To 31 May 2027	12 Months	Place of Performance DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 1001	Period of Performance From 01 Jun 2027 To 31 May 2028	12 Months	Place of Performance DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 2001	Period of Performance From 01 Jun 2028 To 31 May 2029	12 Months	Place of Performance DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 3001	Period of Performance From 01 Jun 2029 To 31 May 2030	12 Months	Place of Performance DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES
Option Line Item 4001	Period of Performance From	12 Months	Place of Performance DoDAAC: F2Q105 CountryCode: USA 1 MSS DPF1 AF BPN NO MILSBILLS PROCESSES, 45 NEALY AVE STE 100 LANGLEY AFB, VA 23665-2032 UNITED STATES

	01 Jun 2030 To 31 May 2031			

Contract Administration Data

Special Contract Requirements

Concessionaire Contract

This Contract is hereby made and entered into on this ___ day of ___2026, by and between the Joint Base Langley-Eustis NAF Contracting Office, on behalf of, Langley Fitness, herein after called the Nonappropriated fund instrumentality (NAFI), and ____, owner/agent of _____ hereinafter called the Concessionaire. The NAFI is a Nonappropriated Fund Instrumentality of the Department of the Air Force, and as such, no appropriated funds of the United States of America shall become due or be paid to the Concessionaire by reason of this Contract. In consideration of the agreements set forth and the payments to be made as stipulated, it is mutually agreed between the parties hereto:

1. Concessionaire will provide massage therapy as outlined in Appendix A, Schedule of Service to Authorized Patrons at Langley Fitness for the base period, beginning ____ and ending ___ with four option years and six months options.

2. NAFI will collect all funds.

3. NAFI will pay the Contractor a sum of 80% of gross sales

4. Payment of fees due to the Contractor must be made:
(Check One) (__) daily, (__) weekly, (X) monthly, or (__) at the end of the sales period and submission of the Concessionaire Settlement Report.
5. The Concessionaire must:

a. Provide products or services of a quality satisfactory to the NAFI manager or their duly authorized representative.

b. Before beginning performance under this agreement, the Concessionaire will submit a listing of items, with corresponding selling prices, to the Contracting Officer for approval or disapproval action. The final approved listing is considered part of this agreement. Place the price list in a conspicuous spot for patrons to see.
c. At Concessionaire's expense, obtain all permits, give all necessary notices; pay all license fees; and comply with all municipal, prefectural, and national laws, rules, ordinances, and regulations, and any publication published by the military relating to public health or applicable to the business carried on under this agreement and assume complete and sole liability for all national, state, and local taxes applicable to the property, income, and transactions of the concession.

d. Comply with all applicable laws pertaining to wages, worker's compensation, equal opportunity, Service Contract Labor Standards Act, and so forth, as implemented by Air Force directives and required by law.

e. Comply with all memoranda, bulletins, and letters of instruction issued by or in behalf of the NAFI manager or their duly authorized representative.

f. Keep the concession area clean, orderly, attractive, secure, and in a safe and sanitary condition to the satisfaction of the NAFI manager.

g. Employ only persons who meet the health standards prescribed by law or regulations, which pertain to the jobs for which they are hired.

h. Furnish a sufficient number of trained employees for the efficient performance of this Concessionaire contract. Concession personnel must meet the health and security standards prescribed by applicable regulations and must obtain installation passes and permits and security clearances as applicable. Concession personnel must give prompt and courteous treatment to authorized customers. Concession personnel must be neatly dressed and meticulous in their personal grooming at all times. Concessionaire provides employees clean uniforms or, when uniforms are not required, ensures that all clothing worn by employees is clean and in good condition at all times. A nameplate must be worn.

i. Remove from employment in the concession, on the request of the NAFI manager, any servant, agent, or employee of the Concessionaire if, in the opinion of the NAFI manager or their duly authorized representative, the conduct of such person, while in and about the premises covered by this contract interferes with proper services or discipline.

j. Obtain insurance for all non-Government property and merchandise used by the Concessionaire in the operation of the concession against theft, fire, storm, flood, and damage, or destruction through any other force of nature; or in lieu thereof, to relieve the NAFI from any liability arising from such theft, loss, damage, or destruction. The Concessionaire must have liability insurance commensurate with the risks involved and furnish proof of such to the Contracting Officer.

k. Not leave cash on the premises during non-operational hours.

l. Be responsible for paying all operating expenses not expressly undertaken by the NAFI.

m. Maintain a Cash Collection Record, showing all income received, in accordance with instructions from the NAFI. Any failure by the Concessionaire, its servants, employees, or agents, to enter all monies received on control sheets will be cause for immediate cancellation of this contract.

6. Concessionaire will not:

a. Represent or permit itself to be represented to the public as an agent or employee of the NAFI by the use of the name of the NAFI on letters, bills, signs, or by any other means. The Concessionaire, its servants, agents, and employees, are in no sense agents of the United States, the NAFI, the commander of the installation within which the concession exists, or of any other entity having to do with the operations of the NAFI.

b. Sell or remove any property that is owned by the NAFI or any other part of the Federal Government and is used in the operation of the concession.

c. Engage in or permit gambling or possession or use of any gambling device on the concession premises or elsewhere on the installation.

d. Sell, deal in, or otherwise possess or transfer, on the concession premises, powdered alcohol or narcotics.

e. Loan money to or borrow money from customers or others, which includes Federal Government (including NAFI) employees and military personnel.

f. Sell merchandise or services for anything other than US currency, unless authorized in writing by the Contracting Officer.

g. Sell merchandise or services on credit.

h. Give or offer to any officer or employee of the NAFI, or any other part of the Federal Government, any gift, privilege, special benefit, discount, or anything else of material or personal nature whereby the individual or employee would receive preferential treatment.

7. General

a. Air Force Auditor General personnel, Public Accountant Contract Audit personnel or any person designated by the installation commander, will have the right to inspect or audit the accounts and methods of internal control established by Concessionaire, and to make such inspection or audits as may be considered necessary to ensure strict compliance by Concessionaire with all provisions of this contract and with applicable Air Force regulations.

b. This contract, unless sooner terminated as herein provided, may be extended for additional periods, each of which may not exceed 12 months by mutual agreement of the parties in writing, subject to approval in the same manner as this instrument.

c. This contract is automatically terminated in the event the NAFI is dissolved.

d. Any monies due and payable to the NAFI from the Concessionaire on the date of this contract must be paid in full or will remain due and payable until final settlement.

SPECIAL PROVISIONS
(Concessionaire Contract)

1. Additional Definitions. The terms Concessionaire and Contractor are used synonymously and mean the individual, partnership, corporation, or other entity which is a party to this contract and who is responsible for all actions and applicable regulations and performance thereunder.

2. Termination: Notwithstanding the clause titled "Termination for Convenience" of the General Provisions relative to termination of this Concessionaire contract, it is mutually agreed that this Concessionaire contract may be terminated in whole or in part by either party:

a. Immediately on written notice to the other party in the event of breach of this Concessionaire contract by the other party.

b. On 1-day notice in writing to the other party. No liability ensues to either party for terminations rendered pursuant to this subparagraph b.

3. Actions To Be Taken Upon Termination (Including Expiration). Concessionaire will promptly settle its account with the NAFI, including payment in full of all amounts due, yield up the facilities and all NAFI furnished property, clean and leave premises in as good order and condition as when received (exceptions are damages due to acts of God or the US Government, and ordinary wear and tear); surrender all installation passes, decals, and so forth, and complete satisfactory settlement of all customer complaints and claims. Termination of the Concessionaire contract does not release the Concessionaire from the obligation to satisfactorily settle customer complaints and claims. The Concessionaire will promptly remove all Concessionaire owned fixtures and supplies. On failure to remove the Concessionaire's property, the Contracting Officer may cause Concessionaire's property to be removed and stored in a warehouse at the Concessionaire's expense. If the Concessionaire is indebted to the NAFI, the Concessionaire authorizes and empowers the Contracting Officer to take possession of the Concessionaire's property and dispose of same by public sale without notice, and out of the proceeds of sale, satisfy all costs and indebtedness to NAFI.

4. Indebtedness:
a. The Concessionaire will pay promptly and in accordance with the terms all indebtedness incurred in connection with the performance of this Concessionaire contract.

b. The NAFI may charge the Concessionaire for a dishonored check received from the Concessionaire, except when the bank acknowledges the return to be the result of bank error or the return is the result of a NAFI error. The amount charged by the NAFI will not exceed the administrative amount normally charged NAFI customers for dishonored checks.

5. Packaging/Price Marking. If required by the Contracting Officer, the Concessionaire will furnish, at its own expense, suitable bags, "sold" labels, and so forth, for securing a customer's purchase. If required, the packaging will be approved by the Contracting Officer. All items will be marked to reflect the selling price.

6. Claims by Concessionaire. No claim by the Concessionaire relating to this Concessionaire contract may be considered by the Contracting Officer unless such claim is submitted in writing to the Contracting Officer not later than 90 days after the effective date of termination or expiration of this Concessionaire contract. This clause does not extend the period for filing claims where specifically limited by another clause.

7. Nonwaiver of Defaults. Any failure by the NAFI to enforce or require strict performance of any terms or conditions of this Concessionaire contract will not constitute a waiver and will not affect or impair such terms and conditions in any way or effect the right of the NAFI at any time to avail itself of such remedies as it may have for breach or breaches of such terms and conditions.

8. Trade Fixtures and Supplies. The Concessionaire will furnish, at its expense, all trade fixtures and supplies required for performance of this Concessionaire contract.

9. Quality/Warranty. All products authorized for the Concessionaire to sell will be marketable and sufficient for use intended, and not be "seconds" as the term is usually understood in the trade. All items will be acceptable to the customer and the Contracting Officer and will be subject to inspection and test for workmanship and quality at all times by the Contracting Officer or designee. Any item found to have a latent defect(s) may be returned to the Concessionaire for replacement or refund as determined by the Contracting Officer.

10. Customer Complaints, Claims, and Refunds. The Concessionaire agrees to adhere to the NAFI policy of customer satisfaction guaranteed and will be responsible for refunds to customers due to customer dissatisfaction with an item or due to overcharges. All customer complaints, claims, and refunds will be resolved and made at Concessionaire's expense. Any disagreement that cannot be resolved between Concessionaire and the customer will be referred to the Contracting Officer, whose decision will be final and not subject to the Disputes clause. If the Concessionaire fails to process complaints or claims and make refunds in a timely manner, the NAFI may settle customer complaints or claims and make such refunds and charge the settlement cost to Concessionaire's account.

11. Internal Controls of Charge-Card Sales:

a. Concessionaire will establish internal control procedures consistent with provisions of this Concessionaire contract and with NAFI directives for a complete and accurate accounting of all transactions.

b. Each sale will be recorded at the time sale is made. The form will be prepared in duplicate, reflecting the applicable sales data, and signed by the customer. The original of the completed form is attached to the Concessionaire Settlement Report and submitted to the supporting NAFI accounting office. The duplicate copy is retained by the Concessionaire.

c. Concessionaire may accept national charge cards customarily recognized in their commercial trade for customer payment of purchases. Concessionaire is responsible for the payment of any fees, charge backs, and other arranged costs levied by the charge-card-issuing companies.

d. The Contracting Officer, or designee, may conduct inspections considered necessary to ensure strict compliance by the Concessionaire with all provisions of this Concessionaire contract.

12. Concessionaire Settlement Report. At the conclusion of the sales period or as specified by the Contracting Officer, Concessionaire will prepare a Concessionaire Settlement Report signed by the Concessionaire showing the gross sales for the period and percent due the NAFI, and give the NAFI the fees due for that period. The original of the form reflecting sales data will be attached. AF Form 2555 is the preferred form to be used.

13. Utilities. The NAFI will furnish sufficient quantities of space, heat, water, and electricity to satisfy the normal needs of Concessionaire for lighting, heating, drinking, sanitation, and the operation of suitable support equipment.

NOTE: If the Concessionaire is required to reimburse the United States Government for utilities furnished, then the rates are set by the installation commander and agreed to by both parties.

14. Premises. The assignment of space is revocable and is not construed as the creation of tenancy. Concessionaire is liable for any damage to or loss of the premises and NAFI furnished property or injury to persons resulting from acts or omissions of Concessionaire, its employees, or agents, whether or not covered by insurance. Sublet of any of the premises assigned or assignment to another concession is not authorized. Use of the premises and NAFI furnished property for any purpose other than those specifically set forth herein is prohibited. Concessionaire will not make any alterations in the facilities provided without prior authorization from the NAFI manager. Concessionaire will comply with installation fire and safety regulations, and applicable health and sanitation regulations. Concessionaire will post or display on the premises any sign furnished by the NAFI.

15. Taxes:

a. Concessionaire assumes complete and sole liability for all Federal, State, host country, and local taxes applicable to the property, income, and transactions of the Concessionaire, and where required by applicable laws and regulations, will collect and remit to the State applicable sales taxes. Sales taxes, which have been collected, are excluded from the computation of gross receipts in the determination of the fee payable to NAFI. The amount of taxes excluded will not exceed the actual sum payable to the State. Where required by State law or regulation, the Concessionaire will obtain and conspicuously display the State sales tax permit.

b. The Concessionaire warrants that the amount payable to the NAFI has not been reduced by the amount of any tax or duty from which the Concessionaire is exempt. If any such tax or duty has been included the pricing or consideration through error or otherwise, the contract pricing or consideration will be correspondingly reduced or adjusted. If for any reason after the contract date, the Concessionaire is relieved in whole or in part from the payment or the burden of any tax or duty included in the contract pricing or other consideration, the contract pricing and other consideration will be correspondingly reduced or adjusted.

Contract Clauses

LEGAL STATUS (NAFI 1001 - 18 Aug 2014)

The Nonappropriated Fund Instrumentality (NAFI), which is party to this contract, is an integral part of the Department of Defense and is an instrumentality of the United States Government. No appropriated funds of the United States shall become due or be paid the Contractor by reason of this contract.

CLAIMS (NAFI 1003.1 - 26 Mar 2014)

a. The contract is not subject to the Contract Disputes Act of 1978 (41 U.S.C. 7101-7109). All disputes arising under or relating to this contract shall be resolved under this clause.

b. "Claims," as used in this clause, means the inability of a contractor and the contracting officer to reach a mutual agreement related to contractual issues in controversy resulting in the filing of a written demand or assertion seeking payment of money, adjustment or interpretation of contract, or other relief, and issuance of a contracting officer's final decision. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under this clause. The submission may be converted to a claim under this clause, by complying with the submission requirements of this clause. if it is disputed either as to liability or amount or is not acted upon in a reasonable time.

c. (1) A claim by the Contractor shall be made in writing and submitted to the Contracting Officer for a written decision. A claim by the NAFI against the Contractor shall be subject to a written decision by the Contracting Officer.

(2) For Contractor claims exceeding $150,000, the Contractor shall submit with the claim a certification that contains the following statement: "Subject to the False Claim Act, 31 USC 3729, I certify the claim is made in good faith; that the supporting data is accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the NAFI is liable; and that I am duly authorized to certify on behalf of the Contractor."

d. For contract claims of $150,000 or less, the Contracting Officer must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor-certified claims over $150,000, the Contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date by which the decision will be made.

e. The Contracting Officer's decision shall be final unless the contractor appeals as provided in
paragraph (f) of this clause.

f. The Contracting Officer's final decision on claims may be appealed by submitting a written appeal to with a copy to the Contracting Officer, within 90 days of receipt of the Contracting Officer's final decision. Decisions of the are final and are not subject to further appeal.

g. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the Contracting Officer.

(End of Clause

CLAIMS - EXCHANGES (NAFI 1003.2 - 26 Mar 2014)

a. This contract is subject to the Contracts Disputes Act of 1978, as amended (41 U.S.C. 7101-7109), hereinafter called "The Act."

b. Except as provided in the Act, all claims arising under or relating to this contract shall be resolved under this clause.

c. "Claim" as used in this clause, means the inability of a contractor and the contracting officer to reach a mutual agreement related to contractual issues in controversy resulting in the filing of a written demand or assertion, by one of the contracting parties seeking, as a matter of right, payment of money in a certain sum, adjustment or interpretation of contract terms, or other relief, arising under or relating to this contract. However, a written demand or written assertion by the Contractor seeking the payment of money exceeding $100,000 is not a claim under the Act until certified as required by Paragraphs e. and f. below. A claim arising under a contract, unlike a claim relating to that contract, is a claim that can be resolved under a contract clause that provides for the relief sought by the claimant. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under this clause. The submission may be converted to a claim under the Act, by complying with the submission and certification requirements of this clause, if it is disputed either as to liability or amount or is not acted upon in a reasonable time.

d. A claim by the contractor shall be made in writing and submitted to the Contracting Officer for a written decision. A claim by the against the Contractor shall be made by a written decision by the Contracting Officer.

e. For Contractor claims exceeding $100,000, the Contractor shall submit with the claim a signed certification that, subject to the False Claim Act, 31 USC 3729:

(1) The claim is made in good faith;

(2) Supporting data are accurate and complete to the best of the Contractor's knowledge and belief; and

(3) The amount requested accurately reflects the contract adjustment for which the Contractor believes the is liable.

f. The claim must be executed and certified by an individual with authority to bind the Contractor.

(1) For Contractor claims of $100,000 or less, the Contracting Officer must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor-certified claims over $100,000, the Contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date by which the decision will be made.

(2) The Contracting Officer shall mail, or otherwise furnish, a written decision in response to a Contractor claim within the time periods specified by law. Such decision will be final and conclusive unless:

(a) Within 90 calendar days from the date of the Contractor's receipt of the final decision, the Contractor appeals the decision to the Armed Services Board of Contract Appeals (ASBCA).

(b) Within 12 months from the date of the Contractor's receipt of the final decision, the Contractor brings an action in the United States Court of Federal Claims.

g. The NAFI shall pay interest on the amount found due and unpaid from (1) the date the Contracting Officer receives the claim (properly certified if required), or (2) the date payment otherwise would be due, if that date is later, until the date of payment. Simple interest on claims shall be paid at the rate, fixed by the Secretary of

the Treasury as provided in the Act, which is applicable to the period during which the Contracting Officer receives the claim and then at the rate applicable for each 6-month period as fixed by the Treasury Secretary during the pendency of the claim.
h. Pending final resolution on any request for relief, claim, appeal, or action arising under or relating to this contract, the Contractor will proceed diligently with the performance of this contract and will comply with the Contracting Officer's decision.
(End of Clause)

REPRESENTATIONS (NAFI 1004 - 4 Nov 2013)
a. This written contract, including identified attachments, enclosures and documents incorporated by reference, is the entire agreement between the parties. The NAFI will not be bound by any oral or written representation not included or incorporated in the written contract or a written modification thereto. The NAFI will not be bound by any terms on Contractor forms or letters unless such terms are specifically agreed to and incorporated in the contract and signed by the Contracting Officer. Except as otherwise specifically provided in this contract, all additions, changes or deletions to this contract must be prepared in writing as a modification and signed either unilaterally by the Contracting Officer or bilaterally by both parties in accordance with applicable regulations.
b. The Contractor shall not represent itself to be an agent or representative of the NAFI or any other agency or instrumentality of the United States.
(End of Clause)

EXAMINATION OF RECORDS (NAFI 1006 - 26 Mar 2014) [For use in all solicitations and contracts.]
a. The Contractor agrees that the Contracting Officer or a duly authorized representative(s) shall have the right to examine and audit the books and records of the Contractor directly pertaining to the contract during the period of the contract and until expiration of three (3) years after the final payment under the contract
b. The Contractor shall include this clause in all subcontracts.
(End of Clause)

PROCUREMENT INTEGRITY (NAFI 1009 - 4 NOV 2013)
By submission of an offer or performance of this contract, the offeror or Contractor certifies with respect to this NAFI contract action:
a. That no discussion, offer, or promise of future employment or business opportunity has nor will be made to NAFI civilian or military personnel who personally and substantially participated in the contract action.
(1) That no offer, promise, or gift of any gratuity, entertainment, money, or other thing of value has nor will be made to any NAFI civilian or military personnel or any other employee of the U.S. Government or member of their family or household.
(2) That no information proprietary to other offerors or other contracting information (offeror list, prices offered, technical evaluations, rankings, etc.) is sought or obtained until it is available to the public under NAFI procedures.
(3) That no person or selling agency has been employed or retained to secure this contract for a commission, percentage, brokerage, or contingent fee except bona fide employees or bona fide established commercial selling agencies retained by the Contractor for the purpose of securing business.
b. The Contractor certifies that no gratuities (entertainment, gifts, money, kickbacks, or other things of value) were nor will be solicited or accepted by the Contractor or Contractor representative, nor from any Subcontractor or Subcontractor representative, for the purpose of obtaining or rewarding favorable treatment in connection with this contract or any subcontract under it.
c. The Contractor will report in writing to the Contracting Officer any possible violation of this clause when there are reasonable grounds to believe a violation may have occurred. The Contractor will cooperate fully with any federal agency investigation of a possible violation of this clause.
d. For breach of any of these certifications, the NAFI may terminate this contract for default, and/or deduct from amounts due under this or other contracts, or charge the Contractor for the total value of any contingent fee, gratuity, kickback or other loss to the NAFI arising out of the breach.
(End of Clause)

ASSIGNMENT OF CLAIMS (NAFI 1010 - 5 Sep 2013) [For use in ALL NAF contracts.]
a. No claims for monies due or to become due shall be assigned by the Contractor unless:
(1) approved in writing by the Contracting Officer;
(2) made in accordance with the laws and regulations of the United States of America; and
(3) permitted by the laws and regulations of the Contractor's country.
b. In no event shall copies of this contract or of any plans, specifications, or other similar documents relating to work under this contract, if marked "Top Secret," or "Confidential," be furnished to any assignee of any claim arising under this contract or to any other person not entitled to receive same. However, a copy of any part, or all, of this contract so marked may be furnished, or any information contained therein may be disclosed, to such assignee upon the prior written authorization of the Contracting Officer.
c. Any assignment under this contract shall cover all amounts payable under this contract and not already paid, and shall not be made to more than one party, except that any such assignment may be made to one party as agent or trustee for two or more parties participating in such financing. On each invoice or voucher submitted for payment under this contract to which any assignment applies and for which direct payment thereof is to be made to as assignee, the Contractor shall identify the assignee by name and complete address and shall acknowledge the validity of the assignment and the right of the named assignee to receive payment in the amount invoiced or vouchered.
(End of Clause)

ASSIGNMENT OF CLAIMS (NAFI 1010.1 - 4 Nov 2013) [For use in ALL NAF contracts.]
The contractor shall not assign any right or delegate any obligations under this contract without the prior written permission of the Contracting Officer.
(End of Clause)
ASSIGNMENT OF CLAIMS (NAFI 1010.2 - 4 Nov 2013) [For use in ALL NAF contracts.]
a. No claims for monies due or to become due shall be assigned by the Contractor unless (i) approved in writing by the Contracting Officer; (ii) made in accordance with the laws and regulations of the United States of America; and (iii) permitted by the laws and regulations of the Contractor's country.

b. Any assignment under this contract shall cover all amounts payable under this contract and not already paid, and shall not be made to more than one party, except that any such assignment may be made to one party as agent or trustee for two or more parties participating in such financing.
On each invoice or voucher submitted for payment under this contract to which any assignment applies and for which direct payment thereof is to be made to as assignee, the Contractor shall identify the assignee by name and complete address and shall acknowledge the validity of the assignment and the right of the named assignee to receive payment in the amount invoiced or vouchered.
(End of Clause)

CHANGES (NAFI 1012.1 - 4 Nov 2013) [For use in solicitations and fixed-price contracts for supplies.]
a. The Contracting Officer may at any time, by written order, and without notice to the sureties, if any, make changes within the general scope of this Contract in any one or more of the following:
(1) If the requirement is for supplies and/or services: drawings, designs, or specifications; method of shipment or packing; description of services to be performed; time of performance (i.e., hours of the day, days of the week, etc.); place of delivery or place of performance of services.
(2) If the requirement is for concession services (including public private ventures): specifications (including drawings and designs); method or manner of performance of work; NAFI-furnished facilities, equipment, materials, services, or site; and/or directing acceleration in the performance of work.
(3) If the requirement is for transportation services: specifications; work or services; place of origin; place of delivery; tonnage to be shipped; and/or amount of NAFI furnished property.
b. If any such change causes an increase or decrease in the cost of, or the time required for, performance of any part of the work under this Contract, whether or not changed by the order, the Contracting Officer will make an equitable adjustment in the Contract price, the delivery schedule, or both, and modify the Contract.
c. The Contractor must assert its right to an adjustment under this clause within 30 days from the date of receipt of the written order; however, if the Contracting Officer decides that the facts justify it, the Contracting Officer may receive and act upon a proposal submitted before final payment of the Contract.
d. If the Contractor's proposal includes the cost of property made obsolete or excess by the change, the Contracting Officer shall have the right to prescribe the manner of the disposition of the property.
e. If the requirement is for architect-engineer or other professional services, no services for which an additional cost or fee will be charged by the Contractor shall be furnished without the prior written authorization of the Contracting Officer.
f. If the requirement is for concession services (including public private ventures), the Contractor shall notify the Contracting Officer in writing within seven (7) days of the occurrence of any event that the Contractor considers a change to the Contract that has not been authorized in writing signed by the Contracting Officer. The Contractor will be deemed to have waived any right to an adjustment if timely notice is not provided to the Contracting Officer as required herein. For purposes of this clause, "event" shall include, but not be limited to, an order or direction by a NAFI or other Government official, a contested contract interpretation, interference with or interruption of the contract work, or any other event that increases the cost or time to perform the contract as compared to the cost or time that would be required if the Contractor performed the Contract in accordance with its terms.
g. Failure to agree to any adjustment shall be a "claim" under either the "Claims" or "Disputes Resolution" clause of this Contract; however, nothing in this clause shall excuse the Contractor from proceeding with the Contract as changed.
(End of Clause)

SOCIAL RESPONSIBILITY AND LABOR STANDARDS - NONRESALE (NAFI 1013 -12 MAY 2014)
By performance of this contract, the Contractor and any subcontractors shall comply with the Social Responsibility requirements addressed herein:
a. Combating Trafficking in Persons (CTIP). Applicable to all contracts, regardless of location performed.
(1) Definitions. The meanings of the terms coercion, commercial sex act, debt bondage, forced labor, involuntary servitude, severe forms of trafficking in persons, and sex trafficking are as is defined in the Trafficking Victims Protection Act of 2000, Public Law 106-386, October 28, 2000.
(2) Policy. DoD NAFIs have adopted the U.S. Government's zero tolerance policy regarding trafficking in persons. During the contract period of performance,

Contractor and contractor employees shall not:
(a) Engage in severe forms of trafficking;
(b) Procure commercial sex; or
(c) Use forced labor.
(3) Contractor Requirements. Contractor shall:
(a) Notify its employees of: Zero tolerance policy described in this clause; and actions that will be taken against employees for violations of this policy. (Such actions may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment); and
(b) Take appropriate action against employees or subcontractors that violate policy in paragraph a.(2) of this clause, up to and including termination.
(4) Notification. Contractor shall inform the Contracting Officer immediately of:
(a) Any information it receives from any source (including host country law enforcement) alleging a Contractor employee, subcontractor, or subcontractor employee has engaged in conduct that violates this policy; and
(b) Any actions taken against Contractor employees, subcontractors, or subcontractor employees pursuant to this clause.
(5) Remedies. In addition to other remedies available to the NAFI, Contractor's failure to comply with the requirements of this clause may result in:
(a) Requiring the Contractor to remove a Contractor employee or employees from performance under the contract;
(b) Requiring the Contractor to terminate a subcontract;
(c) Suspension of contract or fee payments;
(d) Termination of the contract for default or cause, in accordance with the termination clause of this contract; and/or
(e) Suspension or debarment.
(6) Mitigating Factors. The Contracting Officer may consider whether Contractor had a Trafficking in Persons awareness program at the time of any violation as a mitigating factor when determining remedies.

(7) Additional information about Trafficking in Persons and examples of awareness programs can be found on the U.S. Department of State, Office to Monitor and Combat Trafficking in Persons (OMCTP) website < http://www.state.gov/j/tip/index.htm >.
b. Labor; Work Hours, Compensation and Benefits; Discipline; Freedom of Association; Discrimination; and Workspaces. Applicable to all contracts, regardless of location performed.
(1) Contractor Requirements.
(a) Labor. Contractor shall not employ any person under the age of 14 years, unless local and national laws stipulates a higher age for work or mandatory schooling, in which case the higher age will apply. Contractor shall not use force or other compulsory labor in performance of this contract, nor require employees to lodge "deposits" or identity papers upon commencing employment with the Contractor or subcontractor.
(b) Working Hours, Compensation and Benefits. Contractor shall comply with applicable local and national laws on maximum daily/weekly working hours. Contractor shall ensure that wages paid for a standard workweek are consistent with local national laws.
(c) Safe and Healthy Workplace. Contractors shall provide employees with a safe and healthy workplace in compliance with all local and national laws.
(d) Discipline. Contractor shall not engage in or support the use of corporal punishment, mental or physical coercion, verbal abuse, or withholding passports or travel documents.
(e) Freedom of Association & Right to Collective Bargaining. Contractor shall respect the right of all employees to form and join trade unions of their choice, consistent with prevailing local and national laws and to bargain collectively without any activity that impedes or suppresses freedom of association. Contractors shall ensure that representatives of such employees are not subject to discrimination and that such representatives have access to their members in the workplace.
(f) Discrimination. Contractors shall comply consistently with local and national laws with regard to discrimination in hiring, compensation, access to training, promotion, termination, or retirement based on race, caste, national origin, religion, disability, sex, maternity status, union membership, or political affiliation.
c. U.S. Labor Statutes.
(1) Applicable to all contracts, performed within the United States. Where a statute specifies where within the U.S. it applies, the definition in the statute supersedes definitions in this clause.
(2) Definitions.
(a) "United States" in general means the 50 States, the District of Columbia, Outlying Areas, and Outer Continental Shelf lands as defined in the Outer Continental Shelf Lands Act (43 U.S.C. 1331, et seq.), but does not include any other place subject to U.S. jurisdiction or any U.S. base or possession in a foreign country (29 CFR 4.112).
(b) "Outlying Areas" means: (1) Commonwealths of Puerto Rico and The Northern Mariana Islands; (2) Territories: American Samoa, Guam, and U.S. Virgin Islands; and (3) Minor outlying islands (Baker Island, Howland Island, Jarvis Island, Johnston Atoll, Kingman Reef, Midway Islands, Navassa Island, Palmyra Atoll and Wake Atoll).
(3) The Contractor shall:
(a) Comply with all applicable statutes to include, but not limited to the Fair Labor standards Act (FLSA), Service Contract Act (SCA) and Davis Bacon Act (DBA).
(b) Provide subcontractor names and performance addressees within 24 hours, if requested by the Contracting Officer.
(c) Have an effective program for monitoring compliance with applicable statutes and as applicable ensure U.S. Department of Labor (DoL) Wage and Hour Division posters in workers' language are posted at U.S. work sites.
(d) Ensure compliance with all applicable hours, wages, labor relations (including collective bargaining), workmen's compensation, working conditions and other matters pertaining to labor standards of the country, or political matters pertaining to labor standards of the country, or political subdivision thereof, where Contract is performed.
d. To ensure full compliance with requirements of this clause, the NAFI (or third party designated by the NAFI) has the right to conduct announced or unannounced inspections of any site utilized by the Contractor to perform this Contract.
e. Subcontracts. Contractor shall include this clause in all subcontracts.
(End of Clause)

RESTRICTIONS ON CERTAIN FOREIGN PURCHASES (NAFI 1014 - 17 Nov 2014)
[For use in solicitations and contracts unless an exception applies. (Please note that exceptions are rare and may need to be approved on a case by case basis.)]
a. Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR Chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.
b. Lists of countries, entities and individuals subject to economic sanctions are included in OFAC's List of Specially Designated Nationals and Blocked Persons at http://www.treasury.gov/resourcecenter/ sanctions. More information about these restrictions, as well as updates, is available in the OFAC's regulations at 31 CFR Chapter V and/or on OFAC's website at http://www.treas.gov/offices/enforcement/ofac.
c. The Contractor shall insert this clause in all subcontracts.
(End of Clause)

COMMERCIAL WARRANTY (NAFI 1017 - 7 Apr 2014) [For use in solicitations and contracts for supplies and services when a fixed-price contract is contemplated.]
The Contractor agrees supplies or services furnished under this contract shall be covered by the most favorable commercial warranties the Contractor gives to any customer for such supplies or services. The rights and remedies provided herein are in addition to and do not limit any rights afforded to the NAFI by any other clause of this contract. Contractor shall provide printed terms and conditions of such warranty and comply with the Magnuson-Moss Warranty Act (15 U.S. CODE (S) 2302). Warranty shall commence upon acceptance of the items and is in addition to other warranties of additional scope given by the Contractor.
(End of Clause)

TAXES (NAFI 1018.1 - 17 Nov 2014) [For use in solicitations and contracts if the contract is to be performed wholly or partly within the United States, its possessions, or Puerto Rico, when a fixed-price contract is contemplated.]
a. Except as may be otherwise provided in this contract, the contract price includes all taxes, duties, or other public charges in effect and applicable to this contract on the contract date, except any tax, duty or other public charge which by law, regulation or governmental agreement is not applicable to expenditures made by the NAFI or on its behalf:
or any tax, duty, or other public charge from which the Contractor, or any subcontractor hereunder, is exempt by law, regulation or otherwise. If any such tax, duty, or other public charge has been included in the contract price, through error or otherwise, the contract price shall be correspondingly reduced.
b. If for any reason, after the contract date of execution, the Contractor or subcontractor is relieved in whole or in part from the payment or the burden of any tax, duty or other public charge included in the contract price, the contract price shall be correspondingly reduced; or if the Contractor or a subcontractor is required to pay in whole or in part any tax, duty, or other public charge which was not included in the contract price and which was not applicable at the contract date of execution the contract price shall be correspondingly increased.
c. No adjustment of less than $250 shall be made in the contract price pursuant to this clause unless otherwise waived at the unilateral discretion of the Contracting Officer.
d. With respect to foreign taxes, NAFI's located in foreign countries will neither pay to nor collect for any foreign country or political subdivision any tax unless the United States has consented to levy collection by treaty, convention, or executive agreement.
(End of Clause)

NONWAIVER OF DEFAULTS (NAFI 1021 - 2 June 2014) [For use in ALL NAF contracts.]
Any failure by the NAFI at any time to enforce or require strict performance of any terms or conditions shall not constitute waiver thereof, and shall not affect or impair such terms or conditions in any way or the NAFI's right at any time to avail itself of such remedies as it may have for any breach or breaches of such terms or conditions.
(End of Clause)

SUSTAINABILITY (NAFI 1023 - 2 Jun 2014)
The NAFI encourages contractors/vendors to embrace, establish and promote environmentally sustainable "Green Initiatives." We look to the contractor to accomplish this by:
a. Where possible utilize environmentally friendly products.
b. Where possible promote energy-efficiency and water conservation.
c. Where possible eliminate/reduce the production or generation of hazardous waste and the need for special material processing (including special handling, storage, treatment and disposal).
(End of Clause)

LAW GOVERING CONTRACTS (NAFI 1024 - 8 Sep 2014)
This contract shall be construed and interpreted in accordance with the Federal laws of the United States of America. NAF procurement is governed by Department of Defense Instruction (DODI) 4105.67, Nonappropriated Fund (NAF) Procurement Policy and 48 Procedure, available at http://www.dtic.mil/whs/directives/ (or any successor website).
(End of Clause)

ASSIGNMENT OF CLAIMS (NAFI 1025 - 22 Sep 2014) [For use in all NAF contracts.]
The contractor shall not assign any right or delegate any obligations under this contract without the prior written approval of the Contracting Officer. Contractor may request that the contract be novated and shall submit such requests to the Contracting Officer.
(End of Clause)

ESTABLISHING A MINIMUM WAGE FOR CONTRACTORS (NAFI 1034.1 - 8 Dec 2014) [For use: General: The clause applies to solicitations and contracts subject to the Wage Rate Requirements (Construction) statute (formerly known as the Davis Bacon Act) and/or Service Contract Labor Standards statute (formerly known as the Service Contract Act). Also applies to solicitations and contracts where worker's wages are governed by the Fair Labor Standards Act and prime contract exceeds the micropurchase threshold (currently $3,000). Action: Effective 1 January 2015, insert clause in solicitations and resultant contracts where work is to be performed in whole or in part in the United States (the 50 states and the District of Columbia).
Does apply to existing contracts where modifications for renewals or extensions result from bilateral negotiations involving contract modifications which would therefore qualify as "new contracts" subject to the EO if they are awarded on or after 1 Jan 2015, even if such negotiations occur during option periods.
Does not apply to contracts awarded pursuant to solicitations issued prior to 1 Jan 2015.
Does not apply to modifications to make pricing adjustments based on increased labor costs that result from obligation to include a current wage determination related to Wage Rate Requirements (Construction) statute and/or Service Contract Labor Standards statute where bilateral negotiations that occur are limited those necessary to determine and make those pricing adjustments,
Does not apply to existing contracts when exercising a pre-negotiated unilateral right (that the NAFI has for a specified period of time) to extend the term, including pricing adjustments based on increased labor costs resulting from inclusion of a current wage determination.]
a. This Contract is subject to Executive Order 13658, the regulations issued by the Secretary of Labor in 29 CFR part 10 pursuant to the Executive Order, and specifically to all the provisions set forth in Appendix A to 29 CFR part 10. The Contractor shall pay to workers, while performing in the United States, and performing on, or in connection with, this contract, the applicable minimum wage per the Executive Order. Accordingly, Appendix A is hereby incorporated by reference and has the same force and effect as if set forth in full in this Contract. The full text of the final rule, to include the regulations and clause "Establishing a

Minimum Wage for Contractors" at 29 CFR part 10, is available at: < http://www.gpo.gov/fdsys/pkg/FR-2014-10-07/pdf/2014-23533.pdf#page=89 >.
b. The Contractor is responsible for subcontractor compliance with the requirements of this clause and may be held liable for unpaid wages due subcontractor workers. The Contractor shall include this clause, including this paragraph, in all subcontracts, regardless of dollar value, that are subject to Service Contract Labor Standards statute (formerly known as the Service Contract Act) or the Wage Rate Requirements (Construction) statute (formerly known as the Davis Bacon Act), and are to be performed in whole or in part in the United States.
(End of Clause)

PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION (APR 2023) (Clause)
[For use in solicitations and contracts, including those for the acquisition of commercial products, services, and COTS items.]
(a) Definitions. As used in this clause--
"Forced labor" means all work or service which is exacted from any person under the menace of any penalty for its nonperformance and for which the worker does not offer themselves voluntarily.
"Person" means-
(1) A natural person, corporation, company, business association, partnership, society, trust, or any other nongovernmental entity, organization, or group; or
(2) Any successor, subunit, parent entity, or subsidiary of, or any entity under common ownership or control with, any entity described in paragraph (1) of this definition.
"XUAR" means the Xinjiang Uyghur Autonomous Region of the People's Republic of China.
(b) Prohibition. The Contractor shall not provide any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or
transferred from XUAR as part of any forced labor programs throughout the period of performance of the contract.
(c) Subcontracts. The Contractor shall insert this clause, including this paragraph (c), without alteration other than to identify the appropriate parties, in subcontracts including subcontracts for commercial products, and commercially available off-the-shelf items, and commercial services.
(End of Clause)

PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION-CERTIFICATION (APR 2023) (Clause)
[For use in solicitations, including solicitations for the acquisition of commercial products, services, and COTS items, that contain the clause at BI.159 PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION (APR 2023)].
(a) Definitions. "Forced labor", "Person", and "XUAR", as used in this provision, have the meaning given in the "Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region", clause of this solicitation.
(b) Prohibition. DoD may not knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR as part of any forced labor programs, as specified in paragraph (b) of the "Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region", clause of this solicitation.
(c) Certification.
(1) The Offeror does [ ] does not [ ] certify that the Offeror has made a good faith effort to determine that forced labor from XUAR was not or will not be used in the performance of a contract resulting from this solicitation.
(2) Offerors who do not certify having made a good faith effort will not be eligible for award.
(End of provision)

CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (MAY 2023)
(Clause)
[For use in all solicitations and contracts for the acquisition of supplies that are expected to exceed the micro-purchase threshold].
(a) Applicability. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in-
(1) Israel, and the anticipated value of the acquisition is $50,000 or more;
(2) Mexico, and the anticipated value of the acquisition is $92,319 or more; or
(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, Norway, Poland, Portugal, Romania, Singapore, Slovak
Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is $183,000 or more.
(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision BK.030, Certification Regarding Knowledge of Child Labor for Listed End Products, the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.
(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:
(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.
(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.
(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.
(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.
(1) The Contracting Officer may terminate the contract.
(2) The suspending official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.
(3) The debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.
(End of clause)

CERTIFICATION REGARDING KNOWLEDGE OF CHILD LABOR FOR LISTED END PRODUCTS (MAY 2023) (Provision)
[For use in solicitations that are expected to exceed the micro-purchase threshold and are for the acquisition of end products (regardless of country of origin) of a type identified by country of origin on the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor. The contracting officer must identify in paragraph (b) of the provision any applicable end products and countries of origin from the List found at the DOL website. For solicitations estimated to equal or exceed $50,000, the Contracting Officer must exclude from the list in the solicitation end products from any countries identified in BI.160, in accordance with the specified thresholds].
(a) Definition.
Forced or indentured child labor means all work or service-
(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.
(b) Listed end products. The following end product(s) being acquired under this solicitation is (are) included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, identified by their country of origin. There is a reasonable basis to believe that listed end products from the listed countries of origin may have been mined, produced, or manufactured by forced or indentured child labor.
Listed End Product Listed Counties of Origin
__________________________________ __________________________________
__________________________________ __________________________________
__________________________________ __________________________________
(c) Certification. The Government will not make award to an offeror unless the offeror, by checking the appropriate block, certifies to either paragraph (c)(1) or paragraph (c)(2) of this provision.
(1) The Offeror will not supply any end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in a corresponding country as listed for that end product.
(2) The Offeror may supply an end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The Offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture such end product. On the basis of those efforts, the Offeror certifies that it is not aware of any such use of child labor.
(End of provision)

NAF COMBATING TRAFFICKING IN PERSONS (JULY 2024) (Clause)
Prescription
For use in all solicitations, agreements, and contracts. Include as a flow-down to all subcontracts.
Contracting Officers and Buyers additional requirements for purchases of private label and direct import goods from other countries than the USA, must be evaluated based on area of manufacture. Countries receive a risk rating from Tier 1 to Tier 3 on the U.S. Department of State's latest trafficking in persons report (https://www.state.gov/reports/). Suppliers whose production facilities are in countries that did not receive a Tier 1 rating, basic Tier 2 rating, or are on the Tier 2 rating Watch List in the U.S. Department of State's latest report must provide the procurement team with this information:
For all such purchases the Contracting Officer/Specialist is to include the appropriate request for compliance in the solicitation, agreement, or contract. It can be singular or a combination of the below, but the Contractor must provide at least one, as proof of compliance:

The supplier's evidence of compliance with the prohibition of forced or child labor that meets or exceeds one of these conditions:
(a) An acceptable forced and child labor audit performed within the last 2 years by other retailers or brands at each production facility.
(b) An acceptable forced and child labor audit performed within the last 2 years at each production facility by a reputable, independent social responsibility certifying organization.
(c) An acceptable forced and child labor audit performed within the last 2 years on each production facility by a reputable, independent social responsibility audit provider.
(d) A supplier's self-audit or self-attestation is based upon a standard questionnaire for the type of product, the responses to which demonstrate the supplier's knowledge of, and compliance with the prohibitions of forced and child labor. The self-attestation must be completed within the last 2 years.
Note: If language is added to the standard clause, it must not be in conflict or change the intent of the language. In addition, it must be reviewed and receive legal sufficiency by General Counsel.
The above information is the prescription and guidance on the contract clause language below.
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NAF COMBATING TRAFFICKING IN PERSONS CLAUSE
(a) Definitions. As used in this clause-
"Agent" means any individual, including a director, an officer, an employee, or an independent contractor, authorized to act on behalf of the organization.
"Coercion" means-
(1) Threats of serious harm to or physical restraint against any person;
(2) Any scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against any

person; or
(3) The abuse or threatened abuse of the legal process.
"Commercial sex act" means any sex act on account of which anything of value is given to or received by any person.
"Debt bondage" means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt, if the value of those services as reasonably assessed is not applied toward the liquidation of the debt orthe length and nature of those services are not respectively limited and defined.
"Employee" means an employee of the Contractor directly engaged in the performance of work under the contract who has other than a minimal impact or involvement in contract performance.
"Forced Labor" means knowingly providing or obtaining the labor or services of a person-
(1) By threats of serious harm to, or physical restraint against, that person or another person;
(2) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or
(3) By means of the abuse or threatened abuse of law or the legal process.
"Involuntary servitude" includes a condition of servitude induced by means of-
(1) Any scheme, plan, or pattern intended to cause a person to believe that, if the person did not enter into or continue in such conditions, that person or another person would suffer serious harm or physical restraint; or
(2) The abuse or threatened abuse of the legal process.
"Recruitment fees" means fees of any type, including charges, costs, assessments, or other financial obligations, that are associated with the recruiting process, regardless of the time, manner, or location of imposition or collection of the fee.
(1) Recruitment fees include, but are not limited to, the following fees (when they are associated with the recruiting process) for-
(i) Soliciting, identifying, considering, interviewing, referring, retaining, transferring, selecting, training, providing orientation to, skills testing, recommending, or placing employees or potential employees;
(ii) Advertising
(iii) Obtaining permanent or temporary labor certification, including any associated fees;
(iv) Processing applications and petitions;
(v) Acquiring visas, including any associated fees;
(vi) Acquiring photographs and identity or immigration documents, such as passports, including any associated fees;
(vii) Accessing the job opportunity, including required medical examinations and immunizations; background, reference, and security clearance checks and examinations; and additional certifications;
(viii)An employer's recruiters, agents or attorneys, or other notary or legal fees;
(ix) Language interpretation or translation, arranging for or accompanying on travel, or providing other advice to employees or potential employees;
(x) NAFI-mandated fees, such as border crossing fees, levies, or worker welfare funds;
(xi) Transportation and subsistence costs-
(A) While in transit, including, but not limited to, airfare or costs of other modes of transportation, terminal fees, and travel taxes associated with travel from the country of origin to the country of performance and the return journey upon the end of employment; and
(B) From the airport or disembarkation point to the worksite;
(xii) Security deposits, bonds, and insurance; and
(xiii)Equipment charges.
(2) A recruitment fee, as described in the introductory text of this definition, is a recruitment fee, regardless of whether the payment is-
(i) Paid in property or money;
(ii) Deducted from wages;
(iii) Paid back in wage or benefit concessions;
(iv) Paid back as a kickback, bribe, in-kind payment, free labor, tip, or tribute; or
(v) Collected by an employer or a third party, whether licensed or unlicensed, including, but not limited to-
(A) Agents;
(B) Labor brokers;
(C) Recruiters;
(D) Staffing firms (including private employment and placement firms);
(E) Subsidiaries/affiliates of the employer;
(F) Any agent or employee of such entities; and
(G) Subcontractors at all tiers.
"Severe forms of trafficking in persons" means-
(1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
(2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.
"Sex trafficking" means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.
"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.
"Subcontractor" means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.
"United States" means the 50 States, the District of Columbia, and outlying areas.
(b) The NAFI has adopted a policy prohibiting trafficking in persons including the

trafficking-related activities of this clause. Contractors, contractor employees, and their agents shall not-
(1) Engage in trafficking in persons during the period of performance of the contract;
(2) Procure commercial sex acts during the period of performance of the contract;
(3) Use forced labor in the performance of the contract;
(4) Destroy, conceal, confiscate, or otherwise deny access by an employee to the employee's identity or immigration documents, such as passports or drivers' licenses, regardless of issuing authority;
(5) (i) Use misleading or fraudulent practices during the recruitment of employees or offering of employment, such as failing to disclose, in a format and language understood by the employee or potential employee, basic information or making material misrepresentations during the recruitment of employees regarding the key terms and conditions of employment, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if employer or agent provided or arranged), any significant costs to be charged to the employee or potential employee, and, if applicable, the hazardous nature of the work;
(ii) Use recruiters that do not comply with local labor laws of the country in which the recruiting takes place;
(6) Charge employees or potential employees recruitment fees;
(7) (i) Fail to provide return transportation or pay for the cost of return transportation upon the end of employment-
(A) For an employee who is not a national of the country in which the work is taking place and who was brought into that country for the purpose of working on a U.S. NAFI contract or subcontract (for portions of contracts performed outside the United States); or
(B) For an employee who is not a United States national and who was brought into the United States for the purpose of working on a U.S. NAFI contract or subcontract, if the payment of such costs is required under existing temporary worker programs or pursuant to a written agreement with the employee (for portions of contracts performed inside the United States); except that-
(ii) The requirements of paragraphs (b)(7)(i) of this clause shall not apply to an employee who is-
(A) Legally permitted to remain in the country of employment and who chooses to do so; or
(B) Exempted by an authorized official of the contracting NAFI from therequirement to provide return transportation or pay for the cost of return transportation;
(iii) The requirements of paragraph (b)(7)(i) of this clause are modified for a victim of trafficking in persons who is seeking victim services or legal redress in the country of employment, or for a witness in an enforcement action related to trafficking in persons. The contractor shall provide the return transportation or pay the cost of return transportation in a way that does not obstruct the victim services, legal redress, or witness activity. For example, the contractor shall not only offer return transportation to a witness at a time when the witness is still needed to testify.
This paragraph does not apply when the exemptions at paragraph (b)(7)(ii) of this clause apply.
(8) Provide or arrange housing that fails to meet the host country housing and safety standards; or
(9) If required by law or contract, fail to provide an employment contract, recruitment agreement, or other required work document in writing. Such written work document shall be in a language the employee understands. If the employee must relocate to perform the work, the work document shall be provided to the employee at least five days prior to the employee relocating. The employee's work document shall include, but is not limited to, details about work description, wages, prohibition on charging recruitment fees, work location(s), living accommodations and associated costs, time off, roundtrip transportation arrangements, grievance process, and the content of applicable laws and regulations that prohibit trafficking in persons.
(c) Contractor requirements. The Contractor shall-
(1) Notify its employees and agents of-
(i) The NAFI's policy prohibiting trafficking in persons, described in paragraph (b) of this clause; and
(ii) The actions that will be taken against employees or agents for violations of this policy. Such actions for employees may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment; and
(2) Post a copy of that notification, translated into the language(s) of the workers, in an accessible central location and visible to all employees, at all production facilities that manufacture
goods and merchandise.
(3) Take appropriate action, up to and including termination, against employees, agents, or subcontractors that violate the policy in paragraph (b) of this clause.
(d) Notification and full cooperation.
(1) The Contractor shall inform the Contracting Officer [fill-in contact info] and the NAFI or parent organization Inspector General [fill-in contact info] immediately of-
(i) Any credible information it receives from any source (including host country law enforcement) that alleges a Contractor employee, subcontractor, subcontractor employee, or their agent has engaged in conduct that violates the policy in paragraph (b) of this clause (see also 18 U.S.C. 1351, Fraud in Foreign Labor Contracting, if that clause is included in the solicitation or contract, which requires disclosure to the NAFI or parent organization Office of the Inspector General when the Contractor has credible evidence of fraud); and
(ii) Any actions taken against a Contractor employee, subcontractor, subcontractor employee, or their agent pursuant to this clause.
(2) If the allegation may be associated with more than one contract, the Contractor shall inform all possibly-affected contracting officers.
(3) The Contractor shall, at a minimum-
(i) Disclose to the NAFI or parent organization Inspector General [fill-in contact info] information sufficient to identify the nature and extent of an offense and the individuals responsible for the conduct;
(ii) Provide timely and complete responses to NAFI auditors' and investigators' requests for documents;
(iii) Cooperate fully in providing reasonable access to its facilities and staff (both inside and outside the U.S.) to allow contracting NAFI and other responsible Federal agencies to conduct audits, investigations, or other actions to ascertain compliance with the Trafficking Victims Protection Act of 2000 (22 U.S.C. chapter 78), E.O. 13627, or any other applicable law or regulation establishing restrictions on trafficking in persons, the procurement of commercial sex acts, or the use of forced labor; and
(iv) Protect all employees suspected of being victims of or witnesses to prohibited activities, prior to returning to the country from which the employee was recruited, and shall not prevent or hinder the ability of these employees from cooperating fully with NAFI authorities.
(4) The requirement for full cooperation does not foreclose any Contractor rights arising in law or the terms of the contract. It does not-
(i) Require the Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine;

(ii) Require any officer, director, owner, employee, or agent of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; or

(iii) Restrict the Contractor from-

(A) Conducting an internal investigation; or

(B) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

(e) Remedies. In addition to other remedies available to the NAFI, the Contractor's failure to comply with the requirements of paragraphs (c), (d), or (i) of this clause may result in-

(1) Requiring the Contractor to remove a Contractor employee or employees from the performance of the contract;

(2) Requiring the Contractor to terminate a subcontract;

(3) Suspension of contract payments until the Contractor has taken appropriate remedial action;

(4) Loss of award fee, consistent with the award fee plan, for the performance period in which the NAFI determined Contractor non-compliance;

(5) Declining to exercise available options under the contract;

(6) Termination of the contract for default or cause, in accordance with the termination clause of this contract; or

(7) Suspension or debarment.

(f) Mitigating and aggravating factors. When determining remedies, the Contracting Officer may consider the following:

(1) Mitigating factors. The Contractor had a Trafficking in Persons compliance plan (if required) or an awareness program (if required) at the time of the violation, was in compliance with the plan, and has taken appropriate remedial actions for the violation, that may include reparation to victims for such violations.

(2) Aggravating factors. The Contractor failed to abate an alleged violation or enforce the requirements of a compliance plan, when directed by the Contracting Officer to do so.

(3) Posting. The Contractor shall post the relevant requirements for Trafficking in Persons employee notification, no later than the initiation of contract performance, at the workplace (unless the work is to be performed in the field or not in a fixed location) and on the Contractor's Web site (if one is maintained). If posting at the workplace or on the Web site is impracticable, the Contractor shall provide the relevant contents of compliance to each worker in writing and to the Contracting

Officer upon request.

(g) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (g), in all subcontracts and in all contracts with agents.

(End of clause)

52.217-8 Option to Extend Services

Option to Extend Services (Nov 1999)

The NAF may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 60 days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract

As prescribed in 17.208(g), insert a clause substantially the same as the following:

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months

(End of clause)

Supplemental Clauses Incorporated by Full Text

5352.201-9101 ACC Ombudsman **(Jul 2023)**

(a) An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.

(b) Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).

(c) If resolution cannot be made by the contracting officer, the interested party may contact the ombudsman, Deputy Director of Contracting, AFICC/KC (OL-ACC), 114 Thompson Street, Bldg 586, Room 129, Langley AFB, VA 23665, telephone (757) 764-5372 (DSN 574-5372) email: acc.a7k1@us.af.mil. Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/DRU/SMC ombudsman level, may be brought by the interested party for further consideration to the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.

(d) The ombudsman has no authority to render a decision that binds the agency.

(e) Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

(End of clause)

5352.242-9000 Contractor Access to Air Force Installations (Jun 2024)

(a) The contractor shall obtain base identification and vehicle passes, if required, for all contractor personnel who make frequent visits to or perform work on the Department of the Air Force installation(s) cited in the contract. Contractor personnel are required to wear or prominently display installation identification badges or contractor-furnished, contractor identification badges while visiting or performing work on the installation.

(b) The contractor shall submit a written request on company letterhead to the contracting officer listing the following: contract number, location of work site, start and stop dates, and names of employees and subcontractor employees needing access to the base. The letter will also specify the individual(s) authorized to sign for a request for base identification credentials or vehicle passes. The contracting officer will endorse the request and forward it to the issuing base pass and registration office or Security Forces for processing. When reporting to the registration office, the authorized contractor individual(s) should provide a valid driver's license, current vehicle registration, valid vehicle insurance certificate, and <<1> >to obtain a vehicle pass.

(c) During performance of the contract, the contractor shall be responsible for obtaining required identification for newly assigned personnel and for prompt return of credentials and vehicle passes for any employee who no longer requires access to the work site.

(d) When work under this contract requires unescorted entry to controlled or restricted areas, the contractor shall comply with *<<2>>* citing the appropriate paragraphs as applicable.

(e) Upon completion or termination of the contract or expiration of the identification passes, the prime contractor shall ensure that all base identification passes issued to employees and subcontractor employees are returned to the issuing office.

(f) The contractor shall provide an after-hours contact number or after-hours email in the Emergency Mass Notification System (EMNS) for each of their personnel, whose normal place of duty is on a DoD installation or within a DoD facility. The contractor shall comply with any additional requirements in DAFMAN 10-206 for emergency operational reporting. Foreign Nationals may participate and may remove themselves from the Emergency Mass Notification System at any time. To update information, personnel can access the globe icon on their system desktop screens and choose the "Access Self-Service" option.

(g) Failure to comply with these requirements may result in withholding of final payment.

(End of clause)

List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item
01	PWS - Langley Sports and Fitness Center Massage Therapy (NAF)-04.24.26	Performance Work Statement		24 Apr 2026	
02	WD 2015-4341 REV 32 Dated 3 December 25	Wage Determination		03 Dec 2025	
03	FA480026Q0031-Langley Sports and Fitness Center Massage Therapy QA	Questions and Answers - NAF Langley Sports and Fitness Center Massage Therapy		01 May 2026	

Representations, Certification, & Other Statements

Instructions, Conditions, & Notices to Offerors or Quoters

As prescribed in 12.301(b)(1), insert the following provision:

Instructions to Offerors--Commercial Products and Commercial Services (Sep 2023)

(a) North American Industry Classification System (NAICS) code and small business size standard. The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(1) Is set aside for small business and has a value above the simplified acquisition threshold;

(2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show--

(1) The solicitation number;

(2) The time specified in the solicitation for receipt of offers;

(3) The name, address, and telephone number of the offeror;

(4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;

(5) Terms of any express warranty;

(6) Price and any discount terms;

(7) "Remit to" address, if different than mailing address;

(8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);

(9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) Period for acceptance of offers. The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) Product samples. When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the NAFI, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) Multiple offers. Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers. (1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the NAFI office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated NAFI office on the date that offers or revisions are due.
(2) (i) Any offer, modification, revision, or withdrawal of an offer received at the NAFI office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the

acquisition; and-
(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the NAFI infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the NAFI installation designated for receipt of offers and was under the NAFIs control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the NAFI, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the NAFI installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of NAFI personnel.

(4) If an emergency or unanticipated event interrupts normal NAFI processes so that offers cannot be received at the NAFI office designated for receipt of offers by the exact time specified in the solicitation, and urgent NAFI requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal NAFI processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) Contract award (not applicable to Invitation for Bids). The NAFI intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the NAFI reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The NAFI may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) Multiple awards. The NAFI may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The NAFI reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1) (i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at https://assist.dla.mil.
(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at https://assist.dla.mil.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by--

(i) Using the ASSIST feedback module (https://assist.dla.mil/feedback); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at assisthelp@dla.mil.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) Unique entity identifier.(Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a NAFI contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) Debriefing. If a post-award debriefing is given to requesting offerors, the NAFI shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

Addendum to 52.212-1 Instruction to Offerors

Period for Acceptance of Offers: Paragraph (c) of this provision is hereby changed to read 180 calendar days.
Notice to offeror: The Government reserves the right to cancel this solicitation, either before or after the closing date. In the event the Government cancels this solicitation, the Government has no obligation to reimburse an offeror for any costs.

1. GENERAL INSTRUCTIONS

A. The purpose of these instructions is to prescribe the format of Request for Quotes (RFQ) and describe the approach for the development and presentation of the request for quote data. This is designed to ensure the essential information required for evaluation is submitted.

B. To assure the timely and equitable evaluation of request for offeror shall follow the instructions contained herein. Offeror are required to meet and address all of the requirements, including terms and conditions, representations and certifications, and technical requirements. Failure to meet a requirement may result in an offer being deemed ineligible for award. Offeror must clearly identify any exception to the terms and conditions and provide complete accompanying rationale. The RFQ when submitted, shall be comprehensive, complete, self-sufficient, and respond directly to the requirements of the RFQ. Elaborate artwork, expensive paper/ binding and expensive visual aids are neither necessary nor desired.

2. FORMAL COMMUNICATIONS
Any formal communication shall be submitted electronically (via email) to the POCs below. It is the offeror's responsibility to confirm receipt of all formal communications.

633d CONS/PKC
Reference: Solicitation FA4800-26-Q-0031
Vanity Wright
Email: vanity.wright@us.af.mil
Antonio Plamer
Email: antonio.palmer@us.af.mil

3. SUBMISSION OF QUOTES
3.1. The original quote and copies as specified in this document shall be sent to the issuing office listed in Block 9 of Standard Form (SF) 1449; Solicitation, / Contract/ Order for Commercial Items; on or before the date and time specified in Block 8 of SF 1449. Please mark all quote packages as follows:

633d CONS/PKC
Reference: Solicitation FA4800-26-Q-0031
Vanity Wright
Email: vanity.wright@us.af.mil
Antonio Palmer
Email: antonio.palmer@us.af.mil

VOLUME I - Price Volume
The offeror shall complete the Schedule of Supplies and Services (CLINS) of the solicitation by inserting the price elements (unit price and extended amount) for all Firm Fixed Price (FFP) contract line-item numbers (CLINS) for Base Period and all Option Years.

Offeror shall ensure all extended pricing is rounded to whole dollar amounts. Prices shall comply with all SCA wage rates and other pertinent state, local and federal guidelines.

VOLUME II - TECHNICAL VOLUME
To facilitate the evaluation, the technical volume should be specific, detailed, and complete to clearly and fully demonstrate that the offeror has a thorough understanding of the requirements for the accomplishment of the effort. Statements that the offeror understands, can, or will comply with the PWS (including Air Force (AF) publications, technical requirements, etc.); statements paraphrasing the PWS or parts thereof; and phrases such as "standard procedures will be employed" or "well known techniques will be used" etc., will be considered unacceptable.

Technical Acceptable/Unacceptable Ratings
Acceptable: Proposal clearly meets the minimum requirements of the Statement of Work.
Unacceptable: Proposal does not clearly meet the minimum requirements of the Statement of Work.

6. EXCEPTIONS
If the offeror finds it necessary to take exception to any of the requirements specified in this solicitation, clearly indicate such exception(s) in the appropriate volume along with a complete explanation of why the exception was taken and what benefit accrues to the Government. All substantive exceptions to the solicitation requirements and supporting rationale shall be identified as such and consolidated into an overview section of the subject volume. An overview section is only required if the offeror takes exception to any requirement in the solicitation (the overview section will not be included in the quote page limitation described above). While offeror may propose exceptions to the solicitation requirements, the Government is not obligated to accept or consider such exceptions.

Please provide the following information with your quote:
Company Name:
POC Email:
Phone Number:
UEID:
CAGE Code:

(End of Provision)

Evaluation Factors for Award

EVALUATION-COMMERCIAL ITEMS

(a) The NAF will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the NAF, price and other factors considered. The following factors shall be used to evaluate offers:

(i) technical capability of the service offered to meet the NAFI requirement;
(ii) price;
(iii) past performance;

(b) Options. For the purposes of award, the NAF will evaluate the basic requirement along with all options. Evaluation of options will not obligate the NAFI to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

1. Basis for Award. This Non-Appropriated Fund concessionaire contract will awarded to a vendor who is determined to offer the best value.

2. Best Value Determination. All proposed prices for all contract periods will be evaluated for reasonableness, which may be determined based on prices submitted by competition, historical pricing, current market conditions, comparison to the Independent NAFI Estimate, and/or other proposal analysis techniques.
Technical acceptability will be determined by an evaluation of the quoted requirements that meet the criteria contained in the solicitation. If the lowest priced submission does not meet the technical criteria described within the solicitation, the government reserves the right to evaluate the next lowest priced submissions until it has determined a technically acceptable submission. The evaluation will stop at the point when the government determines an offeror to be technically acceptable with the lowest evaluated price; that offer will represent the best value. Contingent upon a determination of contractor responsibility, award will be made to that offeror without further evaluation of other offers. Award will be made to the responsible vendor whose quote is the lowest evaluated price among technically acceptable quotes.

EVALUATION OF TECHNICAL CAPABILITES
To facilitate the evaluation, the technical volume should be specific, detailed, and complete to clearly and fully demonstrate that the offeror has a thorough understanding of the requirements for the accomplishment of the effort. Statements that the offeror understands, can, or will comply with the PWS (including Air Force (AF) publications, technical requirements, etc.); statements paraphrasing the PWS or parts thereof; and phrases such as "standard procedures will be employed" or" well known techniques will be used" etc., will be considered unacceptable. Offeror should note that data submitted prior to the proposal submission including data submitted for current contracts and other solicitations will not be considered in the Government's evaluation. Therefore, such data should not be relied upon nor incorporated in the technical proposal by reference. Offeror shall address the requirements noted in this section by imperative verbs regardless of whether such requirements are preceded by "the offeror shall". The offeror's proposal shall at a minimum be prepared in a form consistent with the technical criteria set forth in the Evaluation Criteria, of this solicitation. All information that the offeror deems appropriate to address for this factor and its subfactors must be included in the proposal in an orderly format. The technical volume shall address all the technical subfactors.

TECHNICAL SUBFACTORS
Subfactor 1 - The contractor must provide valid and legible copies of the certifications per paras 2.1. through 2.3. of the Performance Work Statement.

Subfactor 2 - The contractor must provide online scheduling and schedule confirmation procedures.

Subfactor 3 - The contractor demonstrates a full understanding of the requirement and their capability to perform the services as outlined in the Performance Work Statement.

Technical Acceptable/Unacceptable Ratings
Acceptable: Proposal clearly meets the minimum requirements of the Statement of Work.
Unacceptable: Proposal does not clearly meet the minimum requirements of the Statement of Work.

EVALUATION OF PRICE

The NAFI will pay an 80/20 split of the monthly proceeds from the Langley Sports and Fitness Center Massage Therapy concessionaire contract. Please complete the table below with your proposed monthly rate.

Description	Proposed Rate	Monthly Concessionaire Fee
30-Minute Massage	$	20%

60-Minute Massage	$	20%
90-Minute Massage	$	20%
30-Minute Reflexology	$	20%

(End of Provision)